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PART 1232—TRANSFER OF RECORDS TO RECORDS STORAGE FACILITIES

Authority: [44 U.S.C. 2907](#) and [3103](#).

Source: [74 FR 51014](#), Oct. 2, 2009, unless otherwise noted.

§ 1232.1 What are the authorities for part 1232?

The statutory authorities for this part are [44 U.S.C. 2907](#) and [3103](#).

§ 1232.2 What definitions apply to this part?

See [§ 1220.18 of this subchapter](#) for definitions of terms used throughout Subchapter B, including part 1232.

§ 1232.3 What standards are used as guidance for this part?

These regulations conform with guidance provided in ISO 15489-1:2001 Paragraphs 7.1 (Principles of records management programmes), 8.3.3 (Physical storage medium and protection), 8.3.6 (Access, retrieval and use), 8.3.7 (Retention and disposition), 9.6 (Storage and handling), and 9.8.3 (Location and tracking) apply to records creation and maintenance.

§ 1232.10 Where can a Federal agency transfer records for storage?

Federal agencies may store records in the following types of records storage facilities, so long as the facilities meet the facility standards in [36 CFR part 1234](#). Records transferred to a records storage facility remain in the legal custody of the agency.

(a) NARA Federal Records Centers. NARA owns or operates records centers for the storage, processing, and servicing of records for

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Federal agencies under the authority of [44 U.S.C. 2907](#). These NARA records centers include a National Personnel Records Center that contains designated records of the Department of Defense and the Office of Personnel Management and other designated records pertaining to former Federal civilian employees. A list of NARA Federal Records Centers is available from the NARA Web site at <http://www.archives.gov/locations/index.html>.

- (b) Records centers operated by or on behalf of one or more Federal agencies other than NARA.
- (c) Commercial records storage facilities operated by private entities.

[[74 FR 51014](#), Oct. 2, 2009, as amended at [83 FR 13654](#), Mar. 30, 2018]

◉ § 1232.12 Under what conditions may Federal records be stored in records storage facilities?

The following chart shows what records can be stored in a records storage facility and the conditions that apply:

Type of record	Conditions
(a) Permanent records	Any storage facility that meets the provisions of 36 CFR part 1234 .
(b) Unscheduled records	(1) Any storage facility that meets the provisions of 36 CFR part 1234 . (2) Also requires prior notification to NARA (see § 1232.14(b)).
(c) Temporary records (excluding Civilian Personnel Records)	Any storage facility that meets the provisions of 36 CFR part 1234 .
(d) Vital records	Storage facility must meet the provisions of 36 CFR parts 1223 and 1234 .
(e) Civilian Personnel Records	May only be transferred to the National Personnel Records Center (NPRC), St. Louis, MO (see part 1233 of this subchapter).

◉ § 1232.14 What requirements must an agency meet before it transfers records to a records storage facility?

An agency must meet the following requirements before it transfers records to a records storage facility:

- (a) Ensure that the requirements of [36 CFR part 1234](#) are met. Special attention must be paid to ensuring appropriate storage conditions for records on non-paper based media (e.g., film, audio tape, magnetic tape), especially those that are scheduled for long-term or permanent retention, as those records typically require more stringent environmental controls (see [36 CFR parts 1236 and 1237](#)).
- (b) To transfer unscheduled records, notify NARA in writing prior to the transfer, by mail at National Archives and Records Administration; Office of the Chief Records Officer (AC); 8601 Adelphi Road; College Park, MD 20740-6001, or by email at RM.Communications@nara.gov. The notification must identify the records storage facility and include a copy of the information required by [§ 1232.16\(a\)](#).

- (c) For all records being transferred, create documentation sufficient to identify and locate files. (See [§ 1232.16](#).)
- (d) Ensure that NARA-approved retention periods are implemented properly and that records documenting final disposition actions (destruction or transfer to the National Archives of the United States) are created and maintained.

[74 FR 51014, Oct. 2, 2009, as amended at 83 FR 13654, Mar. 30, 2018]

⦿ **§ 1232.16 What documentation must an agency create before it transfers records to a records storage facility?**

- (a) Documentation must include for each individual records series spanning one or more consecutive years transferred to storage:
 - (1) Creating office;
 - (2) Series title;
 - (3) Description (in the case of permanent or unscheduled records, the description must include a folder title list of the box contents or equivalent detailed records description);
 - (4) Date span;
 - (5) Physical form and medium of records (e.g., paper, motion picture film, sound recordings, photographs, or digital images);
 - (6) Volume;
 - (7) Citation to NARA-approved records schedule or agency records disposition manual (unscheduled records must cite the date the agency notified NARA or, if available, the date the SF 115 was submitted to NARA);
 - (8) Restrictions on access if applicable;
 - (9) Disposition (“permanent,” “temporary,” or “unscheduled; SF 115 pending”);
 - (10) Date of disposition action (transfer to the National Archives of the United States or destruction);
 - (11) Physical location, including name and address of facility; and
 - (12) Control number or identifier used to track records.
- (b) In the case of permanent and unscheduled records, provide copies of such documentation to NARA and advise NARA in writing of the new location whenever the records are moved to a new storage facility. For permanent records, the agency must transmit this documentation to NARA no later than 30 days after transferring records to the agency records center or commercial records storage facility. Transmit documentation by mail at National Archives and Records Administration; Office of the Chief Records Officer (AC); 8601 Adelphi Road; College Park, MD 20740-6001, or by email at RM.Communications@nara.gov.
 - (1) Retain temporary records until the expiration of their NARA-approved retention period and no longer, except as provided for in [§ 1226.18 of this subchapter](#).
 - (2) Transfer permanent records to the National Archives of the United States in accordance with [36 CFR part 1235](#).

[74 FR 51014, Oct. 2, 2009, as amended at 83 FR 13654, Mar. 30, 2018]

⦿ **§ 1232.18 What procedures must an agency follow to transfer records to an agency records center or commercial records storage facility?**

Federal agencies must use the following procedures to transfer records to an agency records center or commercial records storage facility:

- (a) Agreements with agency records centers or contracts with commercial records storage facilities must incorporate the standards in [36 CFR part 1234](#) and allow for inspections by the agency and NARA to ensure compliance. An agency must remove records promptly from a facility if deficiencies identified during an inspection are not corrected within six months of issuance of the report.
- (b) For temporary records, the agency must make available to NARA on request the documentation specified in [§ 1232.16](#).
- (c) Retain temporary records until the expiration of their NARA-approved retention period and no longer, except as provided for in [§ 1226.18 of this subchapter](#).
- (d) Ensure that NARA-approved retention periods are implemented properly and that records documenting final disposition actions (destruction or transfer to the National Archives of the United States) are created and maintained as required by [36 CFR 1232.14](#).
 - (1) Agencies must establish procedures that ensure that temporary records are destroyed in accordance with NARA-approved records schedules and that NARA-approved changes to schedules, including the General Records Schedules, are applied to records in agency records centers or commercial records storage facilities in a timely fashion. Procedures must include a requirement that the agency records center or commercial records storage facility notify agency records managers or the creating office before the disposal of temporary records unless disposal of temporary records is initiated by the agency.
 - (2) Move temporary records that are subsequently reappraised as permanent to a facility that meets the environmental control requirements for permanent records in [§ 1234.14 of this subchapter](#) within one year of their re-appraisal, if not already in such a facility. (Paper-based permanent records in an existing records storage facility that does not meet the environmental control requirements in [§ 1234.14 of this subchapter](#) on October 1, 2009, must be moved from that facility no later than February 28, 2010.)
 - (3) Agencies must establish procedures to ensure that the agency records centers or commercial records storage facilities transfer permanent records to the National Archives of the United States as individual series spanning one or more years and in accordance with the provisions of [part 1235 of this subchapter](#).
- (e) Agencies must ensure that records that are restricted because they are security classified or exempt from disclosure by statute, including the Privacy Act of 1974 ([5 U.S.C. 552a](#), as amended), or regulation are stored and maintained in accordance with applicable laws, Executive orders, or regulations.
- (f) Agencies must ensure that temporary records, including restricted records (security classified or exempted from disclosure by statute, including the Privacy Act of 1974, or regulation), are destroyed in accordance with the requirements specified in [§ 1226.24 of this subchapter](#).
- (g) Agencies must ensure that emergency operating vital records, as defined in [36 CFR part 1223](#), that are transferred to an agency records center or commercial records storage facility are available in accordance with [36 CFR 1223.24](#).
- (h) Provide access to appropriate NARA staff to records wherever they are located in order to conduct an inspection in accordance with [36 CFR part 1239](#) or to process a request for records disposition authority.

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